SCHOOL OF LAW
Faculty of Arts

MACQUARIE University

Topic 4: Subjects of International Law and Statehood

LAWS2000/8015 Public International Law

1. *What are the subjects of international law?*

    a. **What does it mean to be a subject of international law?**

    b. **How is the international legal personality of an international organisation different from that of a state?**

    c. **Discuss critically the role of individuals under international law.**

2. *What are the criteria necessary to meet the international definition of statehood?*

3. *What role does recognition by other states play in this context? Discuss also the different motivations for recognising or not recognising states or governments.*

4. *SCENARIO FOR GROUP WORK: In the last two years, a secessionist movement has been growing in Western Australia seeking to secede from the rest of Australia. The movement claims it does not want to be governed from Canberra anymore and seeks to take full ownership of Western Australia's rich resources.*

    Does Western Australia have the right to secede under international law? What role does the right to self-determination play in this process? And what about the Australian domestic law perspective?

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